

The Competition Commission of India (Salary, Allowances and other terms and Conditions of Service of Chairperson and other members) Rules, 2003

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The Competition Commission of India (Salary, Allowances and other terms and Conditions of Service of Chairperson and other members) Rules, 2003

UNION OF INDIA

India

The Competition Commission of India (Salary, Allowances and other terms and Conditions of Service of Chairperson and other members) Rules, 2003

Rule

THE-COMPETITION-COMMISSION-OF-INDIA-SALARY-ALLOWANCES-AND-OTHER-TERMS-AND-CONDITIONS-OF-SERVICE-OF-CHAIRPERSON-AND-OTHER-MEMBERS-RULES-2003 of 2003

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The Competition Commission of India (Salary, Allowances and other terms and Conditions of Service of Chairperson and other members) Rules, 2003

Published vide G.S.R. 784(E), dated 6.10.2003, published in the Gazette of India, Extraordinary, Part 2, Section 3(1),

dated 6.10.2003

393.

In exercise of the powers conferred by clause (d) of sub-section (2) of section 63, read with sub-section (1) of section 14, of the Competition Act, 2002 (12 of 2003

), the Central Government hereby makes the following rules regulating the salary and allowances payable to, and other terms and conditions of service of, Chairperson and Members of the Competition Commission of India, namely:-

1.

Short title and commencement .-(1) These rules may be called The Competition Commission of India (Salary, Allowances and Other Terms and Conditions of Service of Chairperson and Other Members) Rules, 2003.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions .-(1) In these rules, unless the context otherwise requires,-

(a)

"Act" means the Competition Act, 2002 (12 of 2003

);

(b)

"Chairperson" means the Chairperson of the Commission appointed under sub-section (1) of section 8 of the Act;

(c)

"Commission" means the Competition Commission of India established under sub-section (1) of section 7 of the Act;

(d)

"Member" means a Member of the Commission appointed under sub-section (1) of section 8 of the Act and includes the Chairperson.

(2)

All other words and expressions used in these rules but not defined, shall have the same meanings respectively assigned to them in the Act.

3.

[Pay

.- The Chairperson shall be paid a consolidated monthly salary of [four lakh rupees] and every Member shall be paid a consolidated monthly salary of rupees two lakh fifty thousand. They shall not be entitled to house and car.]

[4. New Pension Scheme. - (1) The Chairperson and other Members shall be governed by the provisions of the New Pension Scheme.

(2)

The New Pension Scheme to the Chairperson and other Members shall be based on pay as prescribed for the Secretary to the Government of India.

(3)

The Chairperson and the other Members shall not be entitled to additional pension and gratuity for the services rendered in the Commission.]

5.

[* * *]

6.

Leave .-(1) The Chairperson and every other Member shall be entitled to thirty days of Earned Leave for every year of service.

(2)

The payment of leave salary during leave shall be governed by rule 40 of the Central Civil Services (Leave) Rules, 1972.

(3)

The Chairperson and every other Member shall be entitled to encashment of fifty per cent of Earned Leave standing to their credit at any time.

7.

Travelling and daily allowances .-The Chairperson and other Members of the Commission while on tour within India or on transfer (including the journey undertaken to join the Commission or on the completion of their tenure with the Commission to proceed to their home town) shall be entitled to the travelling allowance, daily allowance, transportation of personal effects and other similar matters at the same rates [as are prescribed for the Secretary to the Government of India.]

8.

Official visits abroad . - Official visits abroad by the Chairperson or Members shall be undertaken only in accordance with orders issued by the Central Government and they shall be entitled to draw such allowances in respect of such visits [as are prescribed for the Secretary to the Government of India.]

9.

Leave Travel Concession .-The Chairperson and other Members of the Commission shall be entitled to Leave Travel Concession (LTC) at the same rates [as are prescribed for the Secretary to the Government of India].

10.

[* * *]

11.

Facility for medical treatment .-The Chairperson and other Members shall be entitled to medical treatment and hospital facilities as provided in the Central Government Health Scheme (CGHS) to a retired Government servant. At places where the said Scheme is not in operation, the Chairperson and other Members shall be entitled to the facilities as provided in the Central Service (Medical Attendance) Rules, 1944.

12.

Other conditions of service .-Matters relating to the terms and conditions of service of the Chairperson or other Members with respect to which no express provision has been made in these rules, shall be referred by the Commission to the Central Government for its decision, and the decision of the Central Government thereon shall be final.

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